

Gonzalez filed October 20, 2025 and the Cross-Complaint of Schlatter Realtors filed January 15, 2026 for indemnity.

2. The Court does not consider the late opposition by the Plaintiff and the reply brief filed by the City of Richmond and City of Richmond's Housing Authority.
3. The Court **sustains** the Demurrers of the City of Richmond and the City of Richmond's Housing Authority without leave to amend.
4. Counsel for the Richmond Defendants shall prepare and e-file a proposed order conforming to the foregoing ruling no later than five (5) days from the date of the hearing, and shall attach a copy of this tentative ruling.

14. 9:00 AM CASE NUMBER: C25-01321
CASE NAME: MARTHA CAUCH VS. HOME DEPOT U.S.A., INC.
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: CITY OF RICHMOND
TENTATIVE RULING:

See Line 13.

15. 9:00 AM CASE NUMBER: C25-01321
CASE NAME: MARTHA CAUCH VS. HOME DEPOT U.S.A., INC.
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: RICHMOND NEIGHBORHOOD STABILIZATION CORPORATION
TENTATIVE RULING:

See line 13.

16. 9:00 AM CASE NUMBER: C25-01880
CASE NAME: CTE GROUP VS. GENERAL MOTORS, LLC
HEARING ON DEMURRER TO:
FILED BY: GENERAL MOTORS, LLC
TENTATIVE RULING:

Before the Court is a demurrer by General Motors LLC to Plaintiff's complaint. For the reasons set forth, the demurrer to the sixth cause of action is **overruled**. The Court imposes a monetary sanction of \$500 against the demurring party/moving party and its counsel for failure to meet and confer and file the meet and confer declaration pursuant to Code of Civil Procedure sections 430.41(a) and 435.5(a) as ordered by the Court in its February 18, 2026 tentative ruling and minute order. The sanction shall be paid to the Court within 30 days of this ruling.

Background

Plaintiff CTE Group filed a complaint against defendant General Motors LLC ("GM") alleging claims related to its purchase of a new 2023 Chevrolet Tahoe from Concord Chevrolet. (Compl. ¶¶ 5, 38.) CTE alleges that GM manufactures, sells and distributes Chevrolet vehicles, and that Concord Chevrolet is "certified" by GM to sell those vehicles. (Compl. ¶¶ 2, 6.) Plaintiff received written, express and implied warranties in connection from GM with its purchase of the vehicle. (Compl. ¶¶ 8, 9.)

Plaintiff alleges the vehicle was equipped with a 6.2L V8 engine which is known by GM to be predisposed to defects which impair its function and use. (Compl. ¶ 16.) Plaintiff alleges it made a

number of unsuccessful attempts to have the vehicle's engine defects repaired by authorized GM service centers. (Compl. ¶¶ 11-13, 40-43.) CTE alleges GM has been aware of engine defects in the 6.2L V8 engine used in its vehicles, including the Chevrolet Tahoes, as evidenced by, among other things, numerous reports of problems made to the National Highway Transportation Safety Administration ("NHTSA") and by internal repair information issued in technical service bulletins ("TSBs"). (Compl. ¶¶ 16-19, 22-24, 46-61.)

GM issued a safety recall notice in July 2023 covering the 6.2L V8 engine, and in April 2025, GM issued a notice of recall which included 2023 Chevrolet Tahoes. (Compl. ¶¶ 18, 19.) CTE alleges that the defective engine poses a safety hazard and that GM actively concealed the engine defect. (Compl. ¶ 21.)

Plaintiff alleges six causes of action against GM. GM demurs only to the sixth cause of action for fraudulent concealment.

Legal Standards for Ruling on Demurrer

In ruling on the demurrer, the Court must accept as true all well-pleaded factual allegations of the complaint, but not " 'contentions, deductions or conclusions of fact or law.' " (*Blank v. Kirwan* (1985) 39 Cal. 3d 311, 318.) (*See also City of Dinuba v. County of Tulare* (2007) 41 Cal. 4th 859, 865; *Carloss v. County of Alameda* (2015) 242 Cal. App. 4th 116, 123.) The Court is limited to consideration of the complaint and matters of which the Court can take judicial notice. (*Blank v. Kirwan, supra*, 39 Cal.3d at 318; *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) The Court deems the facts alleged to be true, "however improbable they may be." (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal. App. 3d 593, 604; *Universal By-Products, Inc. v. City of Modesto* (1974) 43 Cal.App.3d 145, 151.) The Court gives the complaint "a reasonable interpretation, reading it as a whole and its parts in their context." (*Blank v. Kirwan, supra*, 39 Cal. 3d at 318.) "In the construction of a pleading, for the purpose of determining its effect, its allegations must be liberally construed, with a view to substantial justice between the parties." (Code Civ. Proc. § 452.)

Analysis

GM's demurrer is made on two primary grounds: (1) that the complaint does not plead facts sufficient to state a cause of action for fraudulent concealment; and (2) that the complaint fails to allege that Plaintiff had a transactional relationship with GM which would give rise to a duty to disclose information regarding the vehicle defects.

A. Duty to Disclose and Sufficiency of Allegations of Transactional Relationship

The essential elements of a fraudulent concealment cause of action are: " '(1) the defendant must have concealed or suppressed a material fact, (2) the defendant must have been under a duty to disclose the fact to the plaintiff, (3) the defendant must have intentionally concealed or suppressed the fact with the intent to defraud the plaintiff, (4) the plaintiff must have been unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact, and (5) as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage.' [Citation, some internal quotation marks omitted.]" (*Bigler-Engler v. Berg, Inc.* (2017) 7 Cal.App.5th 276, 310-311 [quoting *Kaldenbach v. Mutual of Omaha Life Ins. Co.* (2009) 178 Cal.App.4th 830, 850].)

"In transactions which do not involve fiduciary or confidential relations, a cause of action for non-disclosure of material facts may arise in at least three instances: (1) the defendant makes representations but does not disclose facts which materially qualify the facts disclosed, or which render his disclosure likely to mislead; (2) the facts are known or accessible only to defendant, and defendant knows they are not known to or reasonably discoverable by the plaintiff; (3) the defendant actively conceals discovery from the plaintiff." (*Bigler-Engler, supra*, 7 Cal.App.5th at 311.) (*See also Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5th 1, 40-41.) *Bigler-Engler* holds that the "necessary relationship giving rise to a duty to disclose" involves a " 'transaction' " between the plaintiff and defendant. (*Bigler-Engler, supra*, 7 Cal.App.5th at 311, 312, 314 ["Such a transaction must necessarily arise from direct dealings between the plaintiff and the defendant; it cannot arise between the defendant and the public at large."].) (*See also Rattagan, supra*, 17 Cal.5th 1, 41.)

The Court in *Dhital v. Nissan North America, Inc.* (2022) 84 Cal.App.5th 828, petn. for rev. granted and dismissed after *Rattagan, supra*, 17 Cal.5th 1, found the complaint sufficiently alleged a transactional relationship between the car buyer and the manufacturer by alleging the dealership was the manufacturer's agent for the sale of the vehicle. (*Dhital, supra*, 84 Cal.App.5th at 834, 844.) The Court rejected Nissan's argument that the plaintiffs did not adequately plead a buyer-seller transactional relationship to state a fraudulent inducement/fraudulent concealment claim, at least at the pleading stage, because the plaintiffs alleged "that Nissan's authorized dealerships are its agents for purposes of the sale of Nissan vehicles to consumers." (*Id.* at 844.)

GM argues in its memorandum in support of the demurrer that Plaintiff did not allege that it purchased the vehicle directly from GM, and therefore, Plaintiff cannot assert a fraudulent concealment claim against GM because "any concealment by GM did not arise in a direct transaction between Plaintiff and GM." (MPA ISO Dem. p. 10, ll. 11-12.) GM also argues that Plaintiff has not pled specific facts sufficient to show the dealer from which it purchased the vehicle was GM's agent as a matter of law, relying on a single unpublished decision of a federal district court (*Antonov v. GM LLC* (C.D. Cal. Jan. 19, 2024), Case No. 8:23-cv-01593-FWS-MJR, 2024 U.S. Dist. LEXIS 10178, *1). (MPA ISO Dem. p. 9, l. 26 – p. 10, ll. 1-9, 14-16.) Lower federal court decisions are generally not controlling or binding authority in California courts, and at best are only persuasive authority. (*T.H. v. Novartis Pharmaceuticals Corp.* (2017) 4 Cal.5th 145, 175; *People v. Gonzales and Soliz* (2011) 52 Cal.4th 254, 296.)

1. Agency and Other Allegations and Relation to Applicable Case Law

In its opposition, Plaintiff argues that it has alleged that CTE had a transactional relationship with GM. In addition to a general agency allegation, CTE alleges that the dealership from which it bought the vehicle is "certified by" GM to sell Chevrolet vehicles, that the sales of GM vehicles including the Tahoe take place exclusively through GM's authorized dealerships, that GM provides all its customers, including Plaintiff, with a written limited warranty covering the vehicle. (Compl. ¶¶ 4, 6, 8, 9.) Plaintiff alleges that GM advertises and markets its vehicles directly to the consumers "for the sole purpose of convincing consumers to go to a Chevrolet dealership to purchase or lease a Chevrolet. (Compl. ¶ 82.)

Regarding the dealership's status as an agent for GM, Plaintiff's allegations consist of substantially more than a general allegation of agency (Compl. ¶ 4) and its allegation that the dealership was certified by GM to sell its Chevrolet vehicles (Compl. ¶ 6). Plaintiff alleges that sales of GM vehicles to

consumers are made exclusively through GM's authorized dealerships under a written dealer agreement imposing numerous obligations on the dealer "for the benefit of Defendants' brand, reputation, and position in the marketplace." (Compl. ¶¶ 82, 83.) Plaintiff alleges a series of facts regarding GM's control over "nearly every material aspect" of its authorized dealerships under which GM acts as principal in the relationship. (Compl. ¶¶ 84.A.-U, 85.)

Plaintiff also alleges that GM "derived a monetary benefit" from the vehicle sale either directly through remission of a portion of the purchase price to GM by the dealer or indirectly by the dealer having to order more vehicles or not returning an unsold vehicle to GM. (Compl. ¶ 86.) CTE alleges GM controls the marketing and sale of its vehicles to consumers, including the vehicle in question. (Compl. ¶ 87.)

The facts of *Bigler-Engler* are distinguishable from those alleged in the complaint here, as the medical device in that case was prescribed by a doctor for the plaintiff as part of her post-surgical care, and the device was rented to the plaintiff by a third party surgery center which owned the device. (*Bigler-Engler*, *supra*, 7 Cal.App.5th at 314.) The Court stated, among other things, that "[t]he evidence does not show Breg [the manufacturer] knew – prior to this lawsuit – that Engler was a potential user of the Polar Care device, that she was prescribed the Polar Care device, or that she used the Polar Care device. The evidence also does not show that Breg directly advertised its products to consumers such as Engler or that it derived any monetary benefits directly from Engler's individual rental of the Polar Care device." (*Id.* [emphasis added].)

The complaint pleads sufficient facts to allege a transactional relationship with GM. Plaintiff alleges facts that were missing in *Bigler-Engler*, including that GM gave Plaintiff a written limited warranty, that GM directly advertises its vehicles to consumers, and that it derived monetary benefits as a result of Plaintiff's purchase of the vehicle from the dealership. (Compl. ¶¶ 4, 6, 8, 9, 82, 86.) Plaintiff has alleged facts to support the existence of an agency relationship between GM and the dealership selling the vehicle that extend well beyond the allegations the Court in *Dhital* found were sufficient to allege an agency relationship for purposes of a demurrer, a decision which is binding precedent in this Court. (*Bigler-Engler*, *supra*, 7 Cal.App.5th at 312; *Dhital*, *supra*, 84 Cal.App.5th at 844 [finding sufficient relationship alleged at the pleading stage based on allegations plaintiffs in that case "bought the car from a Nissan dealership, that Nissan backed the car with an express warranty, and that Nissan's authorized dealerships are its agents for purposes of the sale of Nissan vehicles to consumers."].) (See also *Jones v. ConocoPhillips Co.*, *supra*, 198 Cal.App.4th at 1200 [holding complaint sufficient at the pleading stage to state fraudulent concealment cause of action against manufacturers of toxic chemicals by a plaintiff who worked at factories using the chemicals and allegedly died based on his exposure to the chemicals]; *Bader v. Johnson & Johnson* (2022) 86 Cal.App.5th 1094, 1132-1133 [holding no showing of reasonable probability jury would have found for defendant if jury had been instructed under *Bigler-Engler* "to consider whether similar evidence of transactions, advertising, or J&J's direct monetary benefit supported the transactional requirement," where there was undisputed evidence the plaintiff, who lived with her parents growing up, and her mom used the product and that defendant "was involved in retail sales of [the product] to consumers and profited therefrom"].)

The facts alleged by Plaintiff also include much more extensive, specific factual allegations to support the existence of an agency relationship than the agency allegations in the unpublished, nonbinding

Antonov decision cited by GM. (*Compare* Compl. ¶¶ 4, 6, 82-90, and 137 to *Antonov, supra*, 2024 U.S. Dist. LEXIS 10178 at *25-26 [applying the federal pleading standard for a motion to dismiss, not California's pleading standard on a demurrer, in which the plaintiff only alleged "that he acquired the Vehicle 'from an authorized dealer and agent' of Defendant and the dealership was 'authorized by [Defendant] to do business in the State of California on behalf of [Defendant]' " without additional supporting facts].)

2. GM's Reply Arguments and Authorities

In its reply to the opposition, GM argues that GM is not liable for "independent negligence of a dealership employee or a third party entity with no relationship to it," citing *Mel Clayton GM LLC v. GM LLC Motor Co.* (2002) 104 Cal.App.4th 46. The *Mel Clayton* decision arose in a different factual and legal context, specifically a claim by a dealer for express contractual indemnity, in which the Court of Appeal held the trial court misconstrued the terms of the contractual indemnity provision and improperly granted the dealer summary judgment based on a settlement by the dealer of a third party's claim when the indemnity only applied if the dealer was not negligent and the issue of the dealer's not being negligent, or only passively negligent, had never been litigated or proven by the dealer. (*Id.* at 59-60.) Here, Plaintiff alleges an agency relationship between GM and the dealership, with specific supporting facts, and Plaintiff alleges a claim of fraudulent concealment, a form of deceit under Civil Code section 1710, not negligence.

Other cases cited by GM in its reply are distinguishable on their facts and the legal issues presented. Among other things, none of the cases involved tort claims for fraudulent concealment or addressed the sufficiency of factual allegations of an agency relationship in the context of a demurrer to a fraudulent concealment claim against a product manufacturer. (*Avalon Painting Co. v. Alert Lumber Co.* (1965) 234 Cal.App.2d 178, 182-185 [considering original and amended cross-complaint allegations, there was a probability the plaintiff could allege breach of contract and breach of express warranty causes of action against retailer who sold manufacturer's defective product]; *Vandermark v. Ford Motor Co.* (1964) 61 Cal.2d 256, 260-261 [reversing nonsuit for vehicle manufacturer who could be held liable in strict liability for vehicle defects which caused an accident when manufacturer delegated final steps in making its cars ready for use and sale to its authorized dealers]; *Cardinal Health 301, Inc. v. Tyco Electronics Corp.* (2008) 169 Cal.App.4th 116, 121-122 [rejecting component part manufacturer Tyco's appeal of a jury verdict against it, including its claim that it was not liable on the implied warranty cause of action for defects in medical device, because of its lack of privity with device developer Cardinal, in a commercial, non-consumer product sale].)

While GM argues the "representations" of an employee of a dealership are not a representation of an agent of the defendant principal (Reply p. 3, ll. 20-21), the proposition assumes that the dealership as GM's agent is not bound by the representations (or omissions) of its employees, a proposition which the cases cited by GM do not support. Further, Plaintiff's fraudulent concealment claim is not based on affirmative "representations" by the dealership or its employees, but on what was not disclosed to Plaintiff by the dealership (and GM) in connection with Plaintiff's vehicle purchase.

B. Failure to Plead Fraudulent Concealment with Specificity

The facts stating the essential elements of a fraud cause of action must be pleaded with specificity such that the plaintiff must allege "facts which 'show how, when, where, to whom, and by what

means the representations were tendered.' [Citation omitted.]" (*Lazar v. Superior Court* (1996) 12 Cal.4th 631, 645.) The specificity standard for alleging a fraud claim takes into account the difference between a fraud claim based on affirmative misrepresentations and one based on concealment. (*Alfaro v. Community Housing Improvement System and Planning Assn., Inc.* (2009) 171 Cal.App.4th 1356, 1384 ["[I]t is harder to apply this rule to a case of simple nondisclosure. 'How does one show "how" and "by what means" something didn't happen, or "when" it never happened, or "where" it never happened?' ".]) "Less specificity should be required of fraud claims 'when "it appears from the nature of the allegations that the defendant must necessarily possess full information concerning the facts of the controversy," [citation]; "[e]ven under the strict rules of common law pleading, one of the canons was that less particularity is required when the facts lie more in the knowledge of the opposite party" ' [Citation omitted.]" (*Id.* at 1384.)

In *Rattagan*, the Court explained that if the duty of disclosure "arose by virtue of the parties' relationship and the defendant's exclusive knowledge or access to certain facts, . . . the complaint must also include specific allegations establishing all the required elements, including (1) the content of the omitted facts, (2) the defendant's awareness of the materiality of those facts, (3) the inaccessibility of the facts to the plaintiff, (4) the general point at which the omitted facts should or could have been revealed, and (5) justifiable and actual reliance, either through action or forbearance, based on the defendant's omission. '[M]ere conclusionary allegations that the omissions were intentional and for the purpose of defrauding and deceiving plaintiff[] . . . are insufficient for the foregoing purposes.' [Citation omitted.]" (*Rattagan, supra*, 17 Cal.5th at 43-44.)

GM asserts the complaint fails to allege facts for all the necessary elements of fraudulent concealment as set forth in these authorities. The Court disagrees.

1. Application of Specificity Standards to Plaintiff's Complaint

Plaintiff's complaint alleges that no one at the dealership where Plaintiff purchased the vehicle disclosed information regarding the engine defects that were available to GM through the technical service bulletins and thousands of consumer complaints. Plaintiff alleges (a) the content of the omitted facts (engine defects related to the 6.2L V8 engine used in Tahoes and other GM vehicles), (b) GM's and the dealerships' awareness of those facts, (c) facts showing the information was not accessible to the plaintiff, the point at which the facts should have or could have been disclosed (when Plaintiff purchased the vehicle), and (d) Plaintiff's actual and justifiable reliance by purchasing the vehicle without knowledge of the omitted facts which Plaintiff alleges would have been material to CTE's decision to purchase and if known, would have resulted in CTE not buying the vehicle. (*Rattagan, supra*, 17 Cal.5th at 43-44; Compl. ¶¶ 17-23, 26, 27, 35-39 [including allegation that "at no time" was Plaintiff informed the vehicle Plaintiff purchased was equipped with the defective engine before it purchased the vehicle], 44 [neither GM nor any of its "agents, dealers, or representatives informed Plaintiff of the Defective Engine" at the time of Plaintiff's purchase], 45 [if Plaintiff had been informed, Plaintiff would not have bought the vehicle], 46-67 [GM's prior, exclusive, and superior knowledge of the engine defect], 69-72 [GM's marketing materials and ads relied on by Plaintiff omitting engine defect information], 73-77 [Plaintiff's actual and reasonable reliance and damage], 78-81 [GM's continued marketing with knowledge of engine defect and nondisclosure by GM, agents, dealers and representatives], 88, 89 [GM actively concealed information on the engine defect from

consumers and GM's authorized dealerships], 135 [incorporating prior allegations], 136-141.)

Though some of the allegations regarding GM's marketing materials which did not disclose the defects are alleged generally (*see* Compl. ¶¶ 38, 39, 81), other allegations cite specific marketing materials and representations made by GM in those materials and quote relevant content regarding the engines, which is sufficient to apprise GM of the factual basis of the allegations regarding its marketing materials under the circumstances. (Compl. ¶¶ 32-35, 69-71 [citing and quoting content of 2023 Chevy Tahoe marketing brochure]; *Committee on Children's Television, Inc. v. General Foods Corp.*, *supra*, 35 Cal.3d at 216.) As Plaintiff alleges, however, Plaintiff's claim is based on fraudulent concealment or nondisclosure of material information regarding the engine defects, which it alleges was absent from the marketing materials, or not otherwise provided to Plaintiff by GM or the authorized dealership when it bought the vehicle. (Compl. ¶ 72.)

2. GM's Reply

In its reply, GM argues that Plaintiff has not alleged facts showing GM was aware of defects of this specific vehicle bought by Plaintiff and intended to defraud Plaintiff. The facts alleged regarding the engine defect in the 6.2L V8 used in the Tahoe, the predisposition of Tahoe vehicles equipped with the 6.2L V8 engine to have engine defects that cannot be repaired based on numerous consumer complaints and GM's TSBs which ultimately resulted in safety recalls, and the fact the vehicle was presented to authorized GM authorized repair and service centers for repair for the same type of defect reflected in thousands of NHTSA complaints and the TSBs (Compl. ¶¶ 11-13, 16-19, 23, 24 [Defendants forced to acknowledge models equipped with defective engine "including the Vehicle, suffer from an inherent defect" (emphasis added)], 32-36, 40-43 [Plaintiff's presentation of vehicle for repair on multiple occasions and defect not be fixed], 47-61 [TSBs and NHTSA complaints]) are sufficient at the pleading stage to support inferences that GM knew or should have known about the vehicle's defects to state this cause of action.

As to the "intent to defraud" element, the allegations of the complaint state sufficient facts with specificity regarding GM's intent to conceal the material information regarding the 6.2L V8 engine defects from Plaintiff. (*See, e.g.*, Compl. ¶¶ 80, 82-90 [GM controls sales of vehicles, had exclusive knowledge of the engine defect and inability to fix it resulting in safety recalls, and intentionally concealed information regarding the engine defects from its dealers and from consumers], 136-138 [GM deceived Plaintiff by promising vehicle would meet its warranties when it knew the vehicle's engine defect could not be repaired], in addition to others cited above].)

Conclusion and Ruling on the Merits of the Demurrer

For these reasons, the general demurrer to the sixth cause of action is **overruled**.

Failure to Comply with Court's February 18, 2026 Order to Meet and Confer

The hearing on the demurrer and related motion to strike was originally scheduled for February 18, 2026. The Court posted its tentative ruling the preceding afternoon pursuant to the Court's Local Civil Rules. No party contested the tentative ruling by 4:00 p.m. on February 17, 2026, and the tentative ruling became the order of the Court, reflected in the Court's February 18, 2026 Minute Order. The parties were ordered to meet and confer by telephone, videoconference, or in person pursuant to Code of Civil Procedure sections 430.41(a) and 435.5(a) by March 4, 2026, and counsel for the

demurring party/moving party was ordered to file a declaration demonstrating compliance by March 9, 2026. As of 8:30 a.m. on March 12, 2026, no declaration showing compliance with the Court's February 18, 2026 order was filed. The Court therefore awards a **monetary sanction** of \$500 against GM and its counsel for failure to comply with the Court's February 18, 2026 order and the applicable meet and confer statutes in connection with the demurrer and motion to strike. The sanction shall be paid to the Court within 30 days of the date of this ruling.

17. 9:00 AM CASE NUMBER: C25-01880

CASE NAME: CTE GROUP VS. GENERAL MOTORS, LLC

***HEARING ON MOTION IN RE: STRIKE PUNITIVE DAMAGES FROM PLAINTIFF'S COMPLAINT FILED BY GENERAL MOTORS, LLC**

FILED BY: GENERAL MOTORS, LLC

TENTATIVE RULING:

Before the Court is a motion by General Motors LLC to strike portions of the complaint. For the reasons set forth, the motion is **denied**.

Background

The factual background of the case is addressed in the Court's tentative ruling on the related demurrer to the fraudulent concealment cause of action by General Motors LLC ("GM"). GM has also filed a motion to strike Plaintiffs' claim for punitive damages primarily on the basis that Plaintiffs' fraudulent concealment claim, the claim on which the prayer for punitive damages is based, is not adequately pleaded.

Legal Standards for Ruling on Motion to Strike Punitive Damages

The Court may strike allegations that are "irrelevant, false or improper matter" or any portion of a pleading "not drawn . . . in conformity with the laws of this state." (Code Civ. Proc. § 436(a) and (b).) Like a demurrer, the grounds for a motion to strike must appear on the face of the pleading or be based on a matter subject to judicial notice under Evidence Code §§ 452 and 453. (Code Civ. Proc. § 437(a) and (b).) "A motion to strike, like a demurrer, challenges the legal sufficiency of the complaint's allegations, which are assumed to be true." (*Blakemore v. Superior Court* (2005) 129 Cal.App.4th 36, 53 [citing *Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1255].) It is in the Court's discretion under Code of Civil Procedure section 436 whether to strike portions of the complaint. (Code Civ. Proc. § 436; *Clements v. T. R. Bechtel Co.* (1954) 43 Cal.2d 227, 242; *Colden v. Broadway State Bank* (1936) 11 Cal.App.2d 428, 429.)

A motion to strike is properly granted when a complaint fails to allege facts to state a prima facie claim for punitive damages under the standards of the statute. (*Turman v. Turning Point of Cent. California, Inc.* (2010) 191 Cal.App.4th 53, 63; *Grieves v. Superior Court* (1984) 157 Cal.App.3d 159, 166-168.) Under Civil Code section 3294, punitive damages may be awarded in "an action for the breach of an obligation not arising from contract" where Plaintiff proves the "defendant has been guilty of oppression, fraud, or malice." (Civ. Code § 3294(a).) The statute by its terms is stated in the disjunctive, and pleading facts supporting any one of the grounds for punitive damages (oppression, fraud or malice) is sufficient. (*Las Palmas Associates v. Las Palmas Center Associates* (1991) 235